

SENATE No. 1351

The Commonwealth of Massachusetts

PRESENTED BY:

Jason M. Lewis

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act improving the Massachusetts paid family medical leave law.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Jason M. Lewis</i>	<i>Fifth Middlesex</i>	
<i>John F. Keenan</i>	<i>Norfolk and Plymouth</i>	<i>4/22/2025</i>
<i>Patrick M. O'Connor</i>	<i>First Plymouth and Norfolk</i>	<i>5/16/2025</i>
<i>William J. Driscoll, Jr.</i>	<i>Norfolk, Plymouth and Bristol</i>	<i>8/18/2025</i>

SENATE No. 1351

By Mr. Lewis, a petition (accompanied by bill, Senate, No. 1351) of Jason M. Lewis for legislation to improve the Massachusetts paid family medical leave law. Labor and Workforce Development.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1197 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act improving the Massachusetts paid family medical leave law.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Subsection (a) of section 4 of chapter 175M, as appearing in the 2022
2 Official Edition, is hereby amended by inserting after the second paragraph the following
3 paragraph:-

4 When an employee requests leave under this chapter, or when the employer acquires
5 knowledge that an employee's leave may be for a qualifying reason under this chapter, the
6 employer must notify the employee of the employee's eligibility to take paid leave under this
7 chapter within five business days by giving the employee the appropriate leave certification form
8 as designated by the department and the written information outlined in the preceding paragraph.

9 SECTION 2. Said subsection (a) of said section 4 of said chapter 175M, as so appearing,
10 is hereby amended by inserting after the third paragraph the following paragraph:-

11 When a covered contract worker requests leave under this chapter, or when the covered
12 business entity acquires knowledge that a covered contractor worker's leave may be for a
13 qualifying reason under this chapter, the covered business entity must notify the worker of the
14 worker's eligibility to take leave under this chapter within five business days by giving the
15 worker the appropriate leave certification form as designated by the department and the written
16 information outlined in the preceding paragraph.

17 SECTION 3. Subsection (e) of section 7 of chapter 175M of the General Laws, as so
18 appearing, is hereby amended by inserting into clause (i) from the first sentence in the second
19 paragraph after the word "eligible", in line 84, the following words:- and ineligible

20 And by inserting at the end of clause (iv) from the first sentence in the second paragraph
21 after the word "child", in line 89, the following words:- by year of birth or placement

22 And by striking clause (vii) from the first sentence in the second paragraph in its entirety
23 and inserting the following clause at the end of clause (vi), in line 91:-

24 (vii) eligible and ineligible claimant demographics for each type of leave by age, gender,
25 race, ethnicity, primary language of the applicant, geography, average weekly wage, and
26 occupation;

27 And by striking clauses (ix), (x), (xi), (xii) and (xiii) from the second paragraph in their
28 entirety and inserting the following clauses at the end of clause (viii) in line 95:-

(ix) administrative reviews requested by ineligibility reason; (x) administrative reviews performed, by outcome; (xi) administrative appeal hearings, by outcome; (xii) average weekly benefit amount paid for all claims and by category of leave; (xiii) changes in the gross benefits paid compared to previous fiscal years; (xiv) processing times for initial claims processing, initial determinations, final decisions, and initial payment; (xv) average duration for cases completed; and (xvi) the number of cases remaining open at the close of such year; (xvii) the number of businesses and total workforce headcount enrolled; (xviii) number of businesses and total workforce headcount enrolled in private plans; and to the extent feasible (xix) private plan performance by the metrics in this subsection.

SECTION 4. Said subsection (e) of said section 7 of said chapter 175M of the General Laws, as so appearing, is hereby further amended by inserting after the last sentence of the second paragraph the following sentence:-

The report shall also include details on the annual public education campaign conducted pursuant to subsection (f) of section 8 of this chapter including, but not limited to, employer, employee and cover contract worker outreach efforts and materials, multilingual outreach materials and evidence of multimedia distribution and reach.

SECTION 5. Subsection (f) of section 8 of said chapter 175M, as so appearing, is hereby amended by striking out, in line 60, the word “a” and inserting the following words in place thereof:- an annual